

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

April 27, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Mayor Kaysen recognized members of local Boy Scout Troop 110 in attendance who led the pledge of allegiance.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Valdez, and pursuant to support received by Mr. Brown and Mr. Pierson, agenda item #25(b) was removed from the Consent Agenda. It was noted that procedurally members did not need to officially provide a "second" to a request to remove Consent Agenda items. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON APRIL 13, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM SPECIAL MEETING OF THE GOVERNING BODY ON APRIL 14, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON APRIL 20, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Mr. Valdez and Mr. Brown each declared a conflict of interest and vacated Council Chambers. Upon inquiry, City Treasurer Barb Dorr reviewed a voucher payable to Colour Graphics (\$167.00), Specific Purpose Optional Tax funds, for shirts for the Fire Dept. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing for the purpose of receiving comments and input for a restaurant liquor license application filed with the City Clerk's Office for Sandra J. Inniss d/b/a 2 Doors Down, 118 E 17th St., Cheyenne, WY. Mr. Spiker declared a conflict of interest (business interest) and vacated Council Chambers. There being no comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee. Following closure of the hearing, Mr. Spiker returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input on the 2009-2010 Annual Action Plan for the City of Cheyenne Community Development Block Grant (CDBG) Entitlement. Deanne Widauf, Cheyenne Housing and Community Development Office (H&CD), reviewed the primary purpose of H&CD and programs funded, and explained various areas utilizing funding. She reported 27 grant proposals had been received, noted that the estimated entitlement allocation is \$536,412.00, and clarified the plan provides recommendations for 14 projects including food and prescription assistance, help for first time home buyers, community transportation, assisting with development of new Boys & Girls Club, and ADA home repairs. She advised grant proposals were evaluated by the Advisory Council, who also provided recommendations, and that appropriate notification procedures were followed. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING LOT 5, BLOCK 2, SEAVER’S SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED NORTHEAST OF HARMON AVENUE AND EVERTON DRIVE AND INCLUDING ADJACENT RIGHTS-OF-WAY HARMON AVENUE AND VICTORIA DRIVE).” Mr. Spiker declared a conflict of interest, indicated he would not participate in the discussion and vote, and vacated Council Chambers. Reporting for Public Services Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

“AN ORDINANCE CREATING SECTION 5.76.090, TICKET SCALPING OR RESALE-PROHIBITED PRACTICES; EXCEPTIONS, OF CHAPTER 5.76, TEMPORARY OR TRANSIENT MERCHANTS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR TAK SUBDIVISION, 2ND FILING, A REPLAT OF A PORTION OF LOT 2, BLOCK ONE, TAK SUBDIVISION, CHEYENNE, WYOMING (LOCATED BETWEEN INTERSTATE 25 AND W. LINCOLNWAY, WEST OF THE I-25 OFF-RAMP).” Motion (per Consent Agenda) carried. (#5123)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CAPITOL COMMUNICATIONS SUBDIVISION, A REPLAT OF A PORTION OF LOTS 3 AND 10, AND ALL OF LOTS 4 THROUGH 9, BLOCK 653, STANFIELD ADDITION, CHEYENNE, WYOMING (LOCATED BETWEEN DEMING DRIVE AND THOMES AVENUE; AND W. 5TH AND 6TH STREETS).” Mr. Brown moved to adopt with staff recommendations #1 and 2, seconded by Ms. Case. Upon inquiry regarding plans for development, Gene McDonald with Ayres Associates, agent representing the developers, clarified a portion of the development will be located within the flood way but advised it meets the City’s requirements for development in a flood plain and is in accordance with the NFIP (National Flood Insurance Program). He stated there will be no impact to the base elevation due to the development. Motion carried. Voting “yes” – all members of the governing body. (#5124)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR GATEWAY SOUTH, 2ND FILING, A REPLAT OF LOTS 1-6, BLOCK ONE AND LOTS 1-3, BLOCK TWO, GATEWAY SOUTH, AND THAT PORTION OF W. JEFFERSON ROAD DEDICATED WITHIN GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF W. FOX FARM ROAD AND WALTERSCHEID BOULEVARD).” Motion (per Consent Agenda) carried. (#5125)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED AS FOLLOWS: CAMPSTOOL ROAD COMMENCING AT COMMERCE CIRCLE, THENCE EASTERLY AND SOUTHERLY TO INTERSTATE 80, CHRISTENSEN ROAD COMMENCING AT CAMPSTOOL ROAD, THENCE NORTHERLY TO THE UNION PACIFIC RAILROAD, AND VENTURE DRIVE COMMENCING AT CAMPSTOOL ROAD, THENCE EASTERLY TO THE INTERSTATE 80 SERVICE ROAD, LARAMIE COUNTY, WYOMING.” Mr. Brown moved to adopt, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body. (#5126)

[CA] “A RESOLUTION SUPPORTING THE PROPOSED PIONEER AMTRAK ROUTE THROUGH THE CITY OF CHEYENNE.” Motion (per Consent Agenda) carried. (#5127)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF PROPERTY BEING DESCRIBED AS BEING SITUATED IN TRACTS 249, 250, 251, 252, SUNNYSIDE ADDITION 6TH FILING, EXCEPT NORTH 240 FEET THEREOF AND INCLUDING PORTIONS OF CHARLES AND ARTHUR STREET.” Mr. Brown moved to adopt, seconded by Mr. Collins. Ms. Broyles declared a conflict of interest (family relationship) and vacated Council Chambers. Upon inquiry, Martin Matsen, Development Director, advised there is no agricultural residential zone within the city but there is a rural residential zone, and the property can retain it’s current zoning category until it is developed. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Broyles returned to Council Chambers. (#5128)

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING DEPARTMENT OF TRANSPORTATION FOR A WYOMING RURAL PUBLIC TRANSPORTATION PROGRAM GRANT, FOR THE PURPOSE OF ASSISTING IN PROVIDING THE LOCAL MATCH FOR OPERATING FUNDS FOR THE CITY OF CHEYENNE FOR ITS TRANSIT PROGRAM, AS AUTHORIZED BY 49 U.S.C. §5311.” Motion (per Consent Agenda) carried. (#5129)

“A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE, WYOMING TO LEND FUNDS TO THE PARKS & RECREATION DEPARTMENT TO COMPLETE THE CONSTRUCTION OF THE YOUTH ACTIVITY AND COMMUNITY CENTER IN THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK.” Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Ms. Broyles. Mr. Valdez moved to amend by inserting the additional clause: “Whereas, it is the desire of the Governing Body that any excess money from current, eligible City projects also be utilized for the David R. Romero South

Cheyenne Park Youth Activity and Community Center to offset the loan from the general fund,” seconded by Mr. Spiker. Mr. Spiker advised the City Attorney had recommended a substitute ordinance involving the proposed amendment and moved to amend by substitute [replacing the previous motion], seconded by Ms. Broyles. It was noted the substitute replaces the phrase “...City projects also be utilized . . .” in the new Whereas clause with “... City projects MAY also be utilized WITH THE APPROVAL OF THE GOVERNING BODY ...”. Discussion followed on the intent of the proposed substitute wording, which is to provide administrative flexibility in utilizing potential excess monies or other funding available to be directed to the project relative to borrowing/paying back the proposed loan. Upon inquiry for funding information involving City projects and federal stimulus monies, City Attorney Dan White advised the Mayor can provide information in response to a point of information requested by a Council member. Mr. Spiker requested the Mayor provide information in conjunction with Mr. White’s statement. Mayor Kaysen advised federal stimulus funding has been requested from the American Recovery and Reinvestment Act (ARRA) for several projects, including the Youth Activity and Community Center project, and stated if funding is provided then the request of \$600,000 can be directed to the project and the loan from general fund reserves would not need to be utilized. He stated the word “may” in the proposed substitute would allow for potential excess funds to be transferred from another project(s), and that the resolution involving a loan from general fund reserves would be a fall-back option if other funding is not realized. He further commented that savings could be realized by having the current contractor proceed with the project while still on site. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Comments followed and included the following topics: Prioritization of City projects relative to funding levels available and estimated costs; concern with loaning monies from reserves and payback time frame; affiliation of agenda item #25 (b) (Contract Modification for Phase II construction of the Youth Activity and Community Center) with the proposed resolution; support generally to complete the project; estimated project costs, anticipated user fee revenue, and effect on construction time frame, costs, and the contractor involved if a decision on the resolution were delayed or if Phase II of the project was re-bid. During comments, City Treasurer Barb Dorr provided information on designating (earmarking) reserve funds; use of stimulus funds, if approved, vs. general funds; typical restrictions on supplanting funds with certain types of grant funding; reserve level (\$4.3 million) if the resolution is adopted, and Parks and Recreation program revenue vs. expenditures. Also during comments, Assistant Director of Parks and Recreation Todd Feezer provided information on Phase I status of the project and unanticipated problems encountered; loan amount requested and repayment through program user revenues; programs planned to be offered through the facility and affiliated cost areas, and estimated time frame for loan repayment. Upon inquiry, Ray Fertig, Five-R-Co., project contractor, reviewed anticipated completion time frame for Phase I, stating a few minor issues have been encountered involving change orders, and clarified the company will assist wherever possible to complete the project but funding is needed to move forward in a timely manner with mechanical and electrical packages. Pursuant to inquiry regarding allowable use of money that had previously been designated for the former downtown skywalk project, Vicki Nemecek, Interim Public Works Director, advised \$700,000 was set aside in the 1% budget in the infrastructure development account for economic development use. During discussion and upon inquiry, Mayor Kaysen advised a definitive date on when stimulus dollars may be awarded is unknown at this time but that he would inquire to see if more information was available. Upon inquiry, Rick Parish, Parks and Recreation Director, advised the department has utilized loans from general fund reserves in the past and revenues received have been able to support payback of the loans; reviewed programs to be provided that will fulfill community needs in the area (ex: Summer rec

camp, LatchKey program, etc.), and expressed his desire to complete the entire building in a timely manner. Comments were made in favor of the project with discussion held on the 2 phases of the project (i.e. Phase I - Community Center portion of the building; Phase II - Youth Activity Center); prioritization of projects; use of 6th penny sales tax to acquire the park property, and concern with the general fund reserve level. Upon inquiry, Ms. Dorr advised \$4.1 million is a 30-day reserve level for the City. Ms. Broyles moved to postpone for 4 weeks, seconded by Mr. Valdez. Discussion included support for postponement to review and evaluate general fund reserve and City financial levels, support for the park and completing the project, concern with the number of City projects and anticipated expenditure levels and effect on reserves, and stimulus monies that will hopefully be awarded. Upon inquiry, Mr. Feezer confirmed Phase I of the project is scheduled to be completed prior to Phase II. Motion to postpone for 4 weeks (to May 26, 2009) carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no".

"A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO A NEW REQUEST THROUGH OUR COUNTYWIDE CONSENSUS BLOCK GRANT APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD"-- referred to Finance Committee (sponsors - Ms. Ash, Ms. Broyles, Mr. Spiker and Mr. Valdez). Mr. Valdez advised the item had been discussed under other items for the agenda at the most recent Finance Committee and provisions of Title 2 of City Code had been met. Mr. Valdez moved to adopt, seconded by Ms. Broyles. Gene Burchett spoke in favor of the City's partnering with WYDOT to complete the West Lincolnway reconstruction project to specifically include landscaping median enhancements. He referenced information contained in a handout he provided to Council members (on file with office of City Clerk) and explained his reasons why he felt it was important that the project include the landscaping elements, as proposed by the Metropolitan Transportation Organization (MPO), to improve and beautify the gateway into the City from W. Lincolnway. Also speaking in support of the landscaping enhancements was Randy Bruns, CEO, Cheyenne LEADS, who emphasized the importance of the project with the beautification enhancements, which will assist with opportunities to showcase the community for economic development purposes. He referenced federal stimulus funding that is available for the WYDOT project; mentioned support for the landscaping elements is also provided by the Cheyenne Chamber of Commerce and the Cheyenne Area Convention and Visitors Center, and expressed his opinion that if the enhancements were not included in the project at this time it could be a "50 year lost opportunity" to build and improve the community's entryway. Comments followed in support of the landscaping enhancements as well as potential additional future enhancements, funding sources that may be available for project utilization by the City, and other planned community improvement projects. Ms. Ash moved to strike the phrase "... Pioneer and Carey Reconstruction Project" from the fifth Whereas clause of the resolution and replace with the "... David Romero teen center", seconded by Mr. Valdez. Following a 10 minute recess to review the appropriateness of the motion, Mayor Kaysen reconvened the meeting at 8:00 p.m. and advised the motion on the floor was in order. He clarified, with concurrence by Ms. Ash as maker of the motion, the motion presented is to modify the funding identified for the W. Lincolnway median enhancement project to reflect consensus funds would go toward the David Romero Youth Activity Center instead of the Pioneer and Carey Reconstruction Project if a funding package for the W. Lincolnway median project were unable to be completed. Upon inquiry as to the purpose of the original 5th Whereas clause, Tom Mason, MPO Director, explained when the resolution was being prepared, there was

some uncertainty on the City's ability to fund the median enhancements in its entirety so it was determined that an alternative qualifying project for use of funds would be included in the resolution in case the funding scenario did not come together. He stated timing is critical as WYDOT is opening bids for the W. Lincolnway road project on May 7th. He further advised that since the resolution was presented, WYDOT has informed the City that it will have additional stimulus money available and will be able to contribute \$1.0 million toward the median project with the City's portion now set at \$800,000, and commented that it is hopeful that bids come in maybe less, and hopefully not more, than the engineer's estimates. Mr. Mason discussed funding sources for the City's share of the project. Comment was made that the Whereas clause being discussed was potentially a "moot" point and may not need to be included in the resolution. Upon inquiry, Doug Vetter, Interim City Engineer, advised the Pioneer/Carey project is in the design phase and could be underfunded due to above ground elements, and clarified the Carey Ave. extension project is different from the Pioneer/Carey project. Mr. Mason advised completed landscaping in the W. Lincolnway median would be maintained by the City, and explained since WYDOT is now constructing the fence project on I-180, the City no longer has to fund that project and the resolution is to request that SLIB (State Loan and Investment Board) transfer the money that had been dedicated to the City for the I-180 project to the W. Lincolnway Median Enhancement Project. Discussion followed on the possibility of using dedicated funds for the previous downtown skywalk project and other 5th penny funds for the median project. Interim Public Works Director Vicki Nemecek reviewed requirements for utilizing 5th penny funds and the approval for expenditure process for projects, which must meet the parameters of the 1% ballot question that voters approved. Mayor Kaysen noted the timeliness of the resolution relative to WYDOT's schedule, and the entities that are involved to enable a final funding package to move forward. Pursuant to comment on possible use of SLIB (consensus) monies for the David Romero Park Youth Activity Center project in conjunction with another potential motion to amend, and upon inquiry, City Attorney Dan White reviewed the status of the amendment on the floor and suggested that if a future amendment is proposed, withdrawing the current amendment would be in order to ensure discussion remains on point. Ms. Ash withdrew her motion to amend with concurrence by Mr. Valdez as the second to the motion. Comments followed on the wording of the original resolution and its purpose of funding the W. Lincolnway median enhancements; suggestion that a Council work session be held to review City projects and funding levels, and positive community benefits the completed David Romero Youth Activity Center will provide. Ms. Ash moved to amend the resolution to make the David R. Romero Park the primary project outlined in the resolution, seconded by Mr. Valdez. Mr. Mason advised if the money is redirected to another project, local funds required to join with WYDOT's funding will have to come from somewhere else, and discussed local match funding for federal and state projects. Mr. Mason and Ms. Nemecek provided information regarding use of 5th penny and SLIB funds, eligible matching funds, and unencumbered monies available for state and local matches. It was noted funds designated for the previous skywalk project could be used toward the W. Lincolnway project. Discussion included prioritizing projects, support for funding the David Romero Park and W. Lincolnway median project, timeliness of the resolution relative to WYDOT's schedule, funding availability, and possible postponement of the resolution. Mr. Mason reviewed the time frame involved with the resolution and approval of project funding transferral pursuant to County Commissioners' and SLIB meeting schedules. Cindy Schneider, City Grants Manager, provided information on SLIB meeting deadlines, and cooperative efforts between the State and County in meeting the time frame for the upcoming SLIB meeting. Discussion continued on funding options, time frames, and potential funding sources. Ms. Nemecek provided further information on 5th

penny funding availability for infrastructure development, and Matt Ashby, Urban Planning, suggested caution on the funding amount being discussed as WYDOT has not yet opened bids for the project and it's conceivable bids could come in higher than estimated. Ms. Schneider provided information concerning reallocation of consensus block grant money per SLIB requirements. Mr. Pierson raised a point of order questioning what the proposed amendment entailed. Following comment on the intent of the motion to amend vs. the actual motion made, Ms. Ash withdrew her motion to amend with concurrence by Mr. Valdez as the second to the motion. Ms. Ash moved to amend the 4th Whereas clause in the resolution by striking the phrase " ... I-180 Enhancement Bridge Section ..." and inserting " ... David R. Romero South Side Community Park ...", and by striking the 5th Whereas clause in its entirety, seconded by Mr. Valdez. Discussion followed on the amendment; support for the W. Lincolnway enhancement project as well as the park project; and funding concerns and alternatives. Motion to amend failed. Voting "yes" – Ms. Ash, Ms. Case, Mr. Spiker and Mr. Valdez. Voting "no" – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne and Mayor Kaysen. Mr. Collins moved to amend the 5th Whereas clause to read as follows: "Whereas, if the City and WYDOT are ABLE to complete the funding package for the West Lincolnway Median Enhancement Project THROUGH OTHER SOURCES, then the Consensus Funds would go to the DAVID R. ROMERO YOUTH ACTIVITY CENTER, seconded by Mr. Brown. Upon inquiry, Mr. Vetter reviewed the estimated time frame for the Pioneer/Carey Reconstruction Project and potential funding shortfall issues, and Ms. Schneider responded with information concerning the process for reallocating consensus money. Upon inquiry, Rick Parish, Parks and Recreation Director, and Mr. Mason advised they were unaware whether federal stimulus dollars could be reallocated. Motion to amend failed (due to a tie vote). Voting "yes" – Ms. Ash, Mr. Brown, Mr. Collins, Mr. Spiker and Mr. Valdez. Voting "no" – Ms. Broyles, Ms. Case, Mr. Pierson, Dr. Rinne and Mayor Kaysen. Ms. Ash moved to postpone for 4 weeks, seconded by Mr. Valdez. Donn Edmunds spoke in opposition to postponement, stating his belief action should be taken prior to WYDOT's bid opening. Mr. Mason stated there is a time line in which to move the funding from the I-180 fence to the W. Lincolnway project, reviewed upcoming dates for County Commissioners and SLIB meetings, and cautioned that the availability to use the I-180 funding of \$325,000 could be lost if the item is postponed. Pacomio Sandoval expressed concern with increased project costs if the item were postponed and encouraged the governing body to move forward. Ms. Ash called for the question (to limit debate) on the motion to postpone. Motion died due to the lack of a second. Comments followed on the motion to postpone. Motion to postpone failed. Voting "yes" – Ms. Ash. Voting "no" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Mr. Collins called for the question (to limit debate) on the main motion, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Ash voting "no." Main motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Ash voting "no." (#5130)

[CA] "A RESOLUTION APPROVING THE CITY OF CHEYENNE'S 2009 ANNUAL ACTION PLAN PREPARED BY THE CHEYENNE HOUSING AND COMMUNITY DEVELOPMENT OFFICE" -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] "A RESOLUTION RECOGNIZING THE CITY OF CHEYENNE FIRE AND RESCUE DEPARTMENT FOR 100 YEARS OF DEDICATED AND DISTINGUISHED SERVICE TO THE CITY OF CHEYENNE, WYOMING" -- referred to Public Services Committee (sponsor - Mr. Spiker).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A

FINAL PLAT FOR ZOEYLYNN SUBDIVISION, 2ND FILING, A REPLAT OF LOT 5, BLOCK 2, SEAVER'S SUBDIVISION OF TRACT 16, DELL RANGE ADDITION, SECOND FILING, CHEYENNE, LARAMIE COUNTY, WY (LOCATED AT THE NE CORNER OF THE INTERSECTION OF EVERTON DRIVE AND HARMON AVENUE)" -- referred to Public Services Committee (sponsor - Mr. Brown).

LEASES/CONTRACTS/LEGAL:

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Josh Cossitt, Tennis Professional, to provide tennis instruction services for the 2009 season. Motion (per Consent Agenda) carried (total revenue to City \$500.00). (#5370)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Girls Softball Association, to provide concession services for the 2009, 2010, and 2011 softball seasons at Converse Softball Complex and Brimmer Softball Complex. Motion (per Consent Agenda) carried (total revenue to City \$7,500.00). (#5371)

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department, Laramie County, Wyoming, for the housing of city prisoners at the Laramie County Detention Center. Motion (per Consent Agenda) carried. (#5372)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Department, and Laramie County School District Number 1, to provide transportation services for the REC Camp Program. Motion (per Consent Agenda) carried. (#5373)

[CA] Real Estate Purchase and Sale Agreement between the City of Cheyenne, Parks & Recreation Department, and BNSF Railway Company, for the sale of approximately 18.4 acres of land north of UPRR near College Drive (2003 1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (not to exceed \$139,700.00). (#5374)

[CA] Agreement between the City of Cheyenne, Parks & Recreation Department, and SeeHear Media, for exclusive rights to sell: dasher boards, Zamboni, scoreboards, indoor restroom poster and banner advertising, at the Taco John's Events Center. Motion (per Consent Agenda) carried. (#5375)

[CA] Professional Services Agreement between the City of Cheyenne, and RRT Design and Construction for the Transfer Station Addition -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Sanitation Department, and Alpine Waste and Recycling, for sorting, processing and marketing of single stream curbside recyclable materials -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2009-2010 Concert Season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2009-2010 Youth Educational Concerts -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide transportation services to Laramie County Community College, the City/County Health Department, and an area of Laramie County immediately adjacent to the City of Cheyenne -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 1 to Contract No. 5056 between the City of Cheyenne, Sanitation Department, and Magic City Enterprises, for sorting, processing, and marketing of recyclable materials. Motion (per Consent Agenda) carried (amount not to exceed \$12,000.00). (#5056)

Contract Modification No. 1 to Contract No. 5321 between the City of Cheyenne and RECCO Inc., d/b/a Five-R-Co., to allow for Phase II Construction of the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park to commence. Mr. Valdez moved to approve in an amount not to exceed \$528,892.00, seconded by Ms. Broyles. Mr. Spiker moved to postpone for 4 weeks (to May 26, 2009), seconded by Mr. Collins. Motion to postpone carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no."

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #R-24-09 for furnishing 12 New 2009 Ford Crown Victoria Vehicles with Police Package, from Fremont Motors, Lander, WY, for the Police Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$280,677.60).

[CA] Consideration of Bid #R-25-09 for furnishing and installing misc. police vehicle equipment from Wireless Advanced Communications, Inc., Evans, CO, for the Police Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$206,532.00).

[CA] Consideration of Bid #M-11-09 for a contract between the City of Cheyenne and Knife River for the Fiscal Year 2009 City Overlay Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-26-09 from Peterbilt of Wyoming for furnishing 2 new cab and chassis with automated refuse side loader, for the Sanitation Department -- referred to Finance Committee.

[CA] Consideration of Bid #R-27-09 for the surplus sale of one used Troxler Electronic Road Reader Model 3450 utilized by the Construction Department to Troxler Electronic Labs of Research Triangle Park, NC -- referred to Finance Committee.

APPOINTMENTS:

Appointments of Douglas G. Vetter as City Engineer and Matthew J. Ashby as City Planning Services Director for the City of Cheyenne. Mr. Collins moved to approve, seconded by Mr. Pierson. Upon inquiry regarding information involving a past Capitol Avenue construction project, Mr. Vetter responded the project and warranty were completed and that he was not aware of a project punch list. Ms. Ash raised a point of order stating questions posed to appointees

should be related to job duties and credentials. Following comment in support of the questions involving City projects/issues and appointees' abilities to manage the same, Mayor Kaysen ruled that questioning should pertain to the appointees' job duties, not specific projects. Upon further inquiry, Mr. Vetter provided information on his anticipated approach to managing and overseeing different engineering environments and project types. Upon inquiry, Mr. Ashby reviewed steps he envisions for managing the development of the City's Belvoir property and resources available to implement the Belvoir Master Plan; advised the unified development code project, which will enable many of the ideas addressed in PlanCheyenne, was approximately 95% complete and would be submitted to the governing body in the near future, and explained the Downtown Development Authority is outside his area of responsibility. Mayor Kaysen advised as these were mayoral appointments, pursuant to Wyoming Statute he would not be voting. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote. Mayor Kaysen announced the appointees would receive their oath of office at 8:30 a.m. in City Council Chambers on April 28, 2009.

Appointment of Gale Shenefelt to the Mayor's Council for People with Disabilities. Mr. Collins moved to approve, seconded by Mr. Brown. Mayor Kaysen advised as this was a mayoral appointment he would not be participating in the vote. Motion carried. Voting "yes" - all members of the governing body with the exception of Mayor Kaysen who did not vote.

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] Designation of official voting delegate and alternate delegate for the City of Cheyenne at the 2009 Wyoming Association of Municipalities Annual Convention. Motion (per Consent Agenda) carried (Mayor Kaysen official voting delegate; Mr. Spiker alternate).

Announcement was made of a Public Hearing to be held May 11, 2009 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in a portion of NW ¼ of the SW ¼ of Section 20, T. 14N., R. 66W., of the 6th P.M., Laramie County, Wyoming (located east of and adjacent to Powderhouse Road across from McCue Drive).

OTHER CITY BUSINESS:

John Fafoutakis commented on the proposed pocket park to be located in downtown Cheyenne at the former Mary's Bake Shop site relative to his observations regarding a similar park constructed in downtown Houston, TX, which became attractive to undesirable persons and activities. Mr. Brown raised a point of order stating comments were not on topic relative to City business with Mayor Kaysen requesting Mr. Fafoutakis stay on point with his comments. Mr. Fafoutakis expressed opposition to the proposed downtown pocket park as it may create an environment similar to the one he referenced in Houston. He also commented on recent information communicated through the media concerning the swine flu, and discussed previous history on the original swine flu and problems with past vaccines. Mr. Brown raised a point of order stating comments were not pertinent. Mayor Kaysen explained City-County Health Dept. officials are working closely with State health officials on monitoring the current flu issue.

Donn Edmunds expressed concerns with a drainage ditch built west of Whitney Road relative to storm sewer drainage issues and the types of materials being carried or contained in drainage flows. He described problems with drainage surface areas that are causing ponds and

requested measures be taken to provide for drainage to continue onward in a southerly flow, or be detained on City property, to avoid health and safety issues for persons living in the area.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:46 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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